

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER MCCARTNEY

Date: 5/1/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
7	PP Tango CA LLC vs. Vasconcelos 30-2024-01443104	The Court has read and considered the Defendant's Motion to Set Aside Default Judgment (ROA 36) and Plaintiff's Opposition (ROA 44). The Court takes Judicial Notice of the Declaration in Support of Default Judgment by Court CCP 585(d) (ROA 26), Writ of Possession Unsatisfied (ROA 19), Proof of Service – Substitute (ROA 8) and Complaint (ROA 2). California Evidence Code Section 647 creates a rebuttable presumption that a registered process server's proof of service is true and that service was legally proper. This is a presumption affecting the burden of producing evidence, which places the burden on the challenging party to introduce contrary evidence to overcome it. ROA 26 attaches the Lease agreement between the Plaintiff and Defendant. Section 43 of the lease agreement (page 23) states, "Any notice permitted or required hereunder, and any notice to pay rent or quit or similar notice, shall be deemed personally delivered to Tenant on the date the notice was personally delivered to any employee of Tenant at the Premises." ROA 8 is a proof of service signed under penalty of perjury by a registered process server, Erik Gabriel Reyes #6438, that he served the summons and complaint on "Employee in Charge" Ashley with a description on 12/10/2024 at 1:02 PM. Defendant's Exhibit C references an email on 12/10/2024 at 1:29 PM in which Nicole from the Property Management Company states they are starting the eviction process and that they called and spoke with Ashley. Ashley is referenced in multiple emails contained in Defendant's Exhibit C.

		The Court does not find it credible that the Defendant did not know about the lawsuit at all or that the Defendant never received notice of it. The Court DENIES the Defendant's Motion to Set Aside Default Judgment. The Court orders the Plaintiff to provide notice of the Court's ruling.
8	Seabreeze LP. vs. Viguri 30-2022-01277099	The Court has read and considered the Defendant's Motion to Vacate Default Judgment (ROA 30), Request to Restore Motion to Vacate to Calendar (ROA 46), and Request to Restore Motion to Vacate Default Judgment (ROA 54) and Notice of Motion to Vacate Default Judgment (ROA 63). The Court takes Judicial Notice of the Writ of Possession Returned-Wholly Satisfied (ROA 22), Judgment Unlawful Detainer (ROA 15), Notice that you have been sued OC (ROA 7), Proof of Service of Summons (ROA 12), 1/8/2026 Minute Order, Writ of Possession of Real Property (ROA 17). California Evidence Code Section 647 creates a rebuttable presumption that a registered process server's proof of service is true and that service was legally proper. This is a presumption affecting the burden of producing evidence, which places the burden on the challenging party to introduce contrary evidence to overcome it. Proof of Service indicates personal service of the Defendant, and the only evidence Defendant provides to dispute services is her own statements that she did not receive notice of the proceedings. The Court sent notice of the lawsuit via ROA 7, and at a minimum, when the Orange County Sheriff's Department posted the Notice to Vacate the Premises on 11/3/2022, the Defendant knew of the lawsuit. According to ROA 22, the Plaintiff was restored possession of the premises on 12/2/2022, yet the Defendant did not file anything with the Court before the original motion to vacate on 12/3/2025, 3 years after the restoration of possession to the Plaintiff. Defendant points to the Plaintiff receiving rental assistance from Housing Is Key for \$32,595, but the Defendant's own evidence shows that the rental assistance was for the period of December 2020 to March 2022. The Complaint and Notice to Pay or Quit, and basis for the lawsuit, is the lack of payment for rent for April 2022 and May 2022. Furthermore, the Verification by Landlord Regarding Rental Assistance (ROA 18) is asking the Landlord if they received or have received notice of a pending application for rental assistance for the time period of non-payment of rent listed in the complaint, which here would have been April and May of 2022 or after the filing of the lawsuit. The Court DENIES the Defendant's Motion to Vacate Default Judgment.
9	McFadden Associates LLC vs. Chapa 30-2025-01512881	On 4/17/2026, the Court ruled on this matter. The hearing is taken off calendar.
11	Christopher Paul Teague as Trustee of the Teague Family	The Court has read and considered the Defendant's Motion to Vacate Default Judgment (ROA 40) and the Plaintiff's Opposition (ROA 47).